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DEMURRER WITH
MOTION TO STRIKE

The Court tenders the following tentative decision in the matter Merrick Yzbick v. Studio City Universal Management LLC, et al., Los Angeles County Superior Court case number 26STCV15270, set for hearing on July 9, 2026. Studio City Universal Management, LLC, Rebecca Rosen, and Morris Maky (collectively, Defendants) demur to Merrick Yzbick's (Plaintiff) complaint and each cause of action contained therein individually. Defendants also move to strike Plaintiff's requests for punitive damages. The Court overrules Defendants' demurrer. The Court denies Defendants' motion to strike.

A. Legal
Standard

A demurrer is sustained where "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., 430.10, subd. (e).) "A demurrer tests the legal sufficiency of the factual allegations in a complaint." (Yalung v. State (2023) 98 Cal.App.5th 71, 80.) In reviewing a complaint's legal sufficiency, a court will treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law. (Esparza v. Kaweah Delta Dist. Hospital (2016) 3 Cal.App.5th 547, 552.) It is well settled that a "demurrer lies only for defects appearing on the face of the complaint[.]" (Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) "We not only treat the demurrer as admitting all material facts properly pleaded, but also give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (Guclimane Co. v. Stewart Tit. Guaranty Co. (1998) 19 Cal.4th 26, 38.) For purposes of

ruling on a demurrer, the complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (Wilner v. Sunset Life Ins. Co. (2000) 78 Cal.App.4th 952, 958.)

When ruling on a demurrer, a court may only consider the complaint's allegations or matters which may be judicially noticed. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider any other extrinsic evidence or judge the credibility of the allegations pleaded or the difficulty a plaintiff may have in proving his allegations. (Ion Equipment Corporation v. Nelson (1980) 110 Cal.App.3d 868, 881.) A demurrer is properly sustained only when the complaint, liberally construed, fails to state facts sufficient to constitute any cause of action. (Kramer v. Intuit Inc. (2004) 121 Cal.App.4th 574, 578.)

The Court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The Court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court. (Id., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

When a demurrer is sustained or a motion to strike is granted, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d at p. 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

Plaintiff asserts the following causes of action: (1) wrongful eviction; (2) harassment in violation of Los Angeles Municipal Code section 45.33; (3) harassment in violation of California Civil Code section 1940.2; (4) disability discrimination in violation of the Fair Employment and Housing Act (FEHA); (5) failure to provide reasonable accommodation in violation of the FEHA; (6) interference

with housing rights in violation of the FEHA; (7) breach of the covenant of quiet enjoyment; (8) intentional infliction of emotional distress; and (9) violation of the Unfair Competition Law (UCL). Defendants demur to all Plaintiff's causes of action on the basis that Plaintiff has failed to plead sufficient facts. (Code Civ. Proc., § 430.10, subd. (e).) Specifically, Defendants argue that Plaintiff's claims are barred because his eviction was secured through the execution of a writ of possession obtained pursuant to a court judgment. Additionally, Defendant moves to strike Plaintiff's requests for punitive damages and attorney's fees. (Id., § 436, subd. (a).) The Court will address each argument in turn.

Plaintiff's

action is not barred because of the writ of possession.

Defendants demur

to Plaintiff's complaint on the grounds that because Plaintiff was evicted pursuant to a writ of possession, Defendants are immune from suit. After entry of a judgment for possession of property, the court clerk shall issue a writ of possession. (Code Civ. Proc., § 712.010.) And publications made in a judicial proceeding are privileged. (Civ. Code, § 47, subd. (b).) Thus, generally a party is not liable for effectuating an eviction through proper legal channels. (See *Action Apartment Association, Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232.) However, a landlord is still liable for forcible entry if they evict a tenant under color of a void judgment. (*Bedi v. McMullan* (1984) 160 Cal.App.3d 272, 275 (*Bedi*).) Critically, in *Bedi* the defendants were aware that the writ of possession was based on a judgment which had been set aside. (Id. at p. 274.) The Court of Appeal later determined that where a landlord evicts a tenant using a writ based on a judgment that is later rendered void, the same liability does not attach. (*Glass v. Najafi* (2000) 78 Cal.App.4th 45, 51.)

Defendants point

to *Bisno v. Douglas Emmett Realty Fund* 1988 (2009) 174 Cal.App.4th 1534 as dispositive. There, the Court of Appeal held that the plaintiff's claim premised on a three-day notice to quit was barred by the litigation privilege because it constituted legally-required prerequisite to the filing of an unlawful detainer action which quickly followed. (Id. at pp. 1552–1553.) Because this constituted prelitigation communication in good faith, it could not form the basis for liability. (Id. at p. 1552.) However, the Court of Appeal declined to extend the litigation privilege to cover the issuance of

a 60-day notice of rent increase. (Id. at p. 1553.) It noted that such a notice was much further removed from litigation, and thus plaintiff's claim that the rent increase was improper was not barred by the litigation privilege. (Ibid.)

Here, Defendants' argument invoking the litigation privilege does not defeat Plaintiff's claims as a matter of law. Even if Plaintiff were unable to hold Defendants liable for the forcible removal of Plaintiff through execution of a writ of possession, Plaintiff could still sue for wrongful eviction. This is because wrongful eviction liability is premised on the plaintiff's improper eviction, not the means through which that eviction was obtained. To that end, Plaintiff's complaint includes various allegations apart from the writ's execution, including that his tenancy was wrongfully terminated. (Compl. ¶ 79.) Because Plaintiff was evicted pursuant to the writ before it was found to be void, Bedi liability is unavailable under the complaint as pled. (Id. ¶¶ 44, 52, 54, 59.) But Plaintiff has alleged more than just removal pursuant to a writ. Thus, the litigation privilege does not bar Plaintiff's claims as a matter of law because he seeks relief for his wrongful eviction rather than relief premised on the notice to quit or writ of execution specifically. If the Court followed Defendants' reasoning, plaintiffs could not sue for wrongful eviction so long as the landlord eventually initiated an unlawful detainer proceeding. This would eviscerate protections for tenants that never received notice of those proceedings and would encourage bad faith behavior. Accordingly, Defendants' demurrer is overruled.

Defendants' motion to strike is denied.

Defendants move to strike Plaintiff's prayer for punitive damages and all paragraphs referencing punitive damages in the complaint. A plaintiff may recover punitive damages where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) "Punitive damages are merely incident to a cause of action, and can never constitute the basis thereof." (Today's IV v. Los Angeles County Metropolitan Transportation Authority (2022) 83 Cal.App.5th 1137, 1193.) Here, Plaintiff alleges that Defendants acted with malice, oppression, and fraud in pursuing his eviction. (Compl. ¶ 80.) Defendants once again argue that punitive damages are not available because their actions were legally authorized. While

liability may not attach based on the execution of the writ of possession itself, as discussed ante, Plaintiff has alleged other conduct. This includes pursuing Plaintiff's wrongful eviction despite knowledge of his "psychiatric crisis, hospitalization, diminished capacity, accommodation-related communications." (Ibid.) Accordingly, Defendant's motion to strike is denied as well.

Conclusion:

Defendants' demurrer is overruled. Their motion to strike is denied. 30 days to answer.

MOTION TO STRIKE

The

Court tenders the following tentative decision in the matter Merrick Yzbick v. Studio City Universal Management LLC, et al., Los Angeles County Superior Court case number 26STCV15270, set for hearing on July 28, 2026. Vance Yzbick (Cross-Defendant) moves to strike Studio City Universal Management LLC's (Cross-Complainant) fourth cause of action for unauthorized practice of law and fifth cause of action for intentional interference with contractual relations contained within its Cross-Complaint (CC) pursuant to Code of Civil Procedure section 425.16. Cross-Defendant's motion is granted.

A.

Legal Standard

The anti-SLAPP statute provides a procedure for weeding out meritless claims arising from protected activity at an early litigation stage. (Baral v. Schnitt (2016) 1 Cal.5th 376, 384.) Resolution of anti-SLAPP motions is a two-step process. First, the moving party must establish that the challenged causes of action arise from activity protected by section 425.16. (Taus v. Loftus (2007) 40 Cal.4th 683, 712.) On a successful showing, the burden shifts to the responding party to demonstrate the claim's merit by establishing a probability of success on the merits. (Baral, supra, at p. 384.) "The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment." (Id. at p. 384–85.) The responding party's evidence is

accepted as true, and the moving party's evidence is considered only to determine if it defeats the responding party's claim as a matter of law. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 819–820.)

Activities protected by anti-SLAPP

motions to strike include any acts "in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue." (Code Civ. Proc., § 425.16, subd. (b)(1).) This includes: "(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest." (*Id.*, § 425.16, subd. (e).)

The moving party meets its burden

of showing its activity is protected by demonstrating that the act underlying the responding party's cause of action fits one of the categories in section 425.16, subdivision (e). (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78.) "In short, in ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by defendant supply those elements and consequently form the basis for liability." (*Park v. Board of Trustees*, (2017) 2 Cal.5th 1057, 1063.) "A claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted." (*Verceles v. Los Angeles Unified School District* (2021) 63 Cal.App.5th 776, 784.)

"When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at [the first] stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached." (*Baral*, *supra*, 1 Cal.5th at 396.) However, "if the allegations of protected activity are only incidental to a cause of action based essentially on nonprotected activity, the mere mention of the protected

activity does not subject the cause of action to an anti-SLAPP motion.” (Scott v. Metabolife International, Inc. (2004) 115 Cal.App.4th 404, 414 (Scott).)

B.

Discussion

Cross-Defendant moves to strike Plaintiff's

fourth and fifth causes of action for engaging in the unauthorized practice of law and intentional interference with contractual relations on the basis that they are based on protected activity and lack merit. The Court will address whether the complained of activity is protected under section 425.16, subdivision (e) before addressing whether Cross-Complainant has shown a probability of success on the merits.

Plaintiff's causes of action
arise from protected activity.

Cross-Defendant argues that Cross-Complainants
claims against him arise out of protected activity. Specifically,
Cross-Defendant argues that the fourth cause of action for unauthorized practice of law arises out of protected activity. Protected activity includes “any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law.” (Code Civ. Proc., § 425.16, subd. (e)(1).) Here, Cross-Complainant alleges that Cross-Defendant filed an ex-parte application in case number 25PDUD01722. (CC ¶ 16.) Cross-Complainant further alleges that this filing delayed its relief in the unlawful detainer proceeding. (Id. ¶ 17.) Such a filing is protected activity under section 425.16, subdivision (e)(1), as it constitutes a writing made before a judicial proceeding. Thus, the Court finds that Cross-Complainant's fourth cause of action arises out of protected activity.

With respect to the fifth cause of
action, Cross-Complainant alleges that Cross-Defendant interfered with a valid contract between it and Merrick and David Yzbick. (CC ¶¶ 20–22.) Specifically, it alleges that he represented himself as Merrick's agent and purposefully prolonged the eviction case. (Id. ¶ 23.) These allegations do not refer to statements made before a judicial proceeding, but they do encompass to statements “made in connection with an issue under consideration or review by a . . . judicial body.” (Code Civ. Proc., § 425.16, subd. (e)(2).) Indeed, the alleged interference specifically “dragged out the eviction case.” (CC ¶ 23.) Thus, the

fifth cause of action also arises out of protected activity.

Cross-Complainant has not demonstrated a probability of success on the merits with respect to its fraud claim.

Cross-Defendant argues that Cross-Complainant cannot show a probability of prevailing on the merits regarding its cause of action for unauthorized practice of law. “No person shall practice law in California unless the person is an active licensee of the State Bar.” (Bus. & Prof. Code, § 6125.) “[A]lthough persons may represent themselves and their own interests regardless of State Bar membership, no one but an active member of the State Bar may practice law for another person in California.” (Birbrower, Montalbano, Condon & Frank v. Superior Court (1998) 17 Cal.4th 119, 127.)

However, Business and Professions Code section 6125 does not appear to confer a private right of action. One may be prosecuted for a misdemeanor offense. (Bus. & Prof. Code, § 6126.) The State Bar and City Attorney’s may also bring actions under this section. (Id., §§ 6126.3, 6126.5.) But “[a] violation of a state statute does not necessarily give rise to a private cause of action.” (Lu v. Hawaiian Gardens Casino, Inc. (2010) 50 Cal.4th 592, 596) The language of a statute and its legislative history reveal whether the legislature manifested the necessary intent to make a private right of action. (Ibid.) Here, section 6125 and the surrounding provisions do not mention a private right of action or contemplate one. There is no clear manifestation of intent by the legislature to create a private right of action as is required. (See San Diegans for Open Government v. Public Facilities Financing Authority of City of San Diego (2019) 8 Cal.5th 733, 739.) Thus, Cross-Complainant’s fourth cause of action has no statutory basis and is improper, meaning that it has not demonstrated a probability of success on the merits. Even if the claim was construed as sounding in fraud, Cross-Complainant has not pled facts pertaining to the essential elements of a fraud claim. Accordingly, Cross-Defendant’s motion is granted with respect to the fourth cause of action.

Cross-Complainant has not demonstrated a probability of success on the merits with respect to its claim for intentional interference with contractual relations.

Cross-Defendant argues that

Cross-Complainant cannot demonstrate a probability of prevailing on the merits with respect to its fifth cause of action for intentional interference with contractual relations, either. “To recover in tort for intentional interference with the performance of a contract, a plaintiff must prove: (1) a valid contract between plaintiff and another party; (2) defendant’s knowledge of the contract; (3) defendant’s intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.” (Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7 Cal.4th 503, 514, fn. 5.)

Cross-Defendant maintains that his alleged actions are protected under the litigation privilege. Publications made as part of a judicial proceeding are privileged. (Civ. Code, § 47, subd. (b).) “The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that [has] some connection or logical relation to the action.” (Pech v. Doniger (2022) 75 Cal.App.5th 443, 465 (Pech) [quoting Silberg v. Anderson (1990) 50 Cal.3d 205, 212].) The privilege is not limited to statements made during proceedings, but rather encompasses steps taken prior or afterwards. (Pech, supra, at p. 465.) Here, Cross-Complainant has demonstrated that the litigation privilege does not apply. Specifically, Cross-Defendant did not qualify as a litigant or other participant authorized by law in the relevant proceeding. Cross-Defendant was not a party to the action or a licensed attorney. (King Decl. ¶¶ 5, 7.)

However, Cross-Complainant still fails to demonstrate that it has a probability of succeeding on this claim. While it presents evidence of a valid contract between it and a third party, namely the lease between Cross-Complainant and Merrick Yzbick (Rosen Decl. ¶ 2), and that Cross-Defendant had knowledge of this contract (id. ¶ 3), it has not shown that Cross-Defendant intended to disrupt the contractual relationship. Rather, Cross-Complainant alleges that Cross-Defendant interfered with the proposed settlement of the eviction case. (CC ¶ 22.) This matter only arose after Merrick Yzbick had already ceased paying rent, allegedly breaching the contract between him and Cross-Complainant. Thus, Cross-Complainant does not demonstrate that Cross-Defendant intended to disrupt the lease agreement itself as his involvement only began after the agreement had been breached.

While Cross-Complainant also offers

a declaration stating that Cross-Defendant interfered with the lease agreement itself (Rosen Decl. ¶ 4), that passage is properly objected to as lacking foundation by Cross-Defendant. Additionally, the testimony in the declaration is inconsistent with the CC, which references interference with the settlement, not the lease itself. (See CC ¶ 22.) Accordingly, Cross-Defendant's motion is granted with respect to the fifth cause of action as well.

Conclusion:

The Court grants
Cross-Defendant's motion to strike the 4th and 5th causes
of action as to Vance Yzbick.